
2:00 PM - LINE 2

23-CIV-00710

RICHARD TOLENTINO VS 24-SEVEN SENIOR CARE LLC

RICHARD TOLENTINO
24-SEVEN SENIOR CARE LLC

STEPHEN NOEL ILG
MICHAEL A. FARBSTEN

MOTION FOR FINAL APPROVAL OF CLASS SETTLEMENT – FINAL COMPLIANCE HEARING

TENTATIVE RULING:

On November 13, 2025, by written order filed November 21, 2025, this court approved the settlement in this Class Action and Private Attorney's General Act (PAGA) matter and the court set a compliance hearing for July 29, 2026.

On July 15, 2026, Mary Butler of Simpluris, Inc. (Simpluris), the settlement administrator, filed a declaration setting forth the work that it performed to disburse the settlement funds, and to comply with its obligations under the settlement agreement and this court's order.

According to Butler's declaration, Simpluris issued the settlement checks to all 120 settlement class members and the time for cashing the checks will expire on September 15, 2026. All other disbursements, for attorneys' fees and costs, the service award to the class representative, the LWDA, and the employer's taxes, have also been made. Butler's declaration states that there are 37 checks, totaling \$11,034.71, that remain uncashed.

As previously ordered, on or after September 16, 2026, Simpluris is to remit the uncashed funds to Legal Aid at Work with instructions that the funds are for use in San Mateo County. Within seven (7) days thereafter, Simpluris is further ordered to file, serve, and email to Department 28 a declaration stating that it has done so. Once this declaration is filed, the case will be fully resolved and will be closed.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM - **LINE 3**

23-CIV-01075

A.B.O. COMIX, ET AL VS. COUNTY OF SAN MATEO, ET AL

A.B.O. COMIX
COUNTY OF SAN MATEO

CARA GAGLIANO
PATRICK M. RYAN

DEFENDANTS' MOTION FOR SUMMARY JUDGMENT

TENTATIVE RULING:

Defendants County of San Mateo and Kenneth Binders' (defendants, or the County) Motion for Summary Judgment, filed May 8, 2026, is **GRANTED**. (Code Civ. Proc., § 437c.)

Defendants' May 8, 2026 Request for Judicial Notice (RJN) is **GRANTED** as to Exhibits A & I (Evid. Code, § 452, subd. (d)), and **GRANTED** as to the fact identified in ¶ 3. (*Id.*, § 452, subd. (g).) As to documents in the court's file, the court takes judicial notice of their contents and filing dates, but does not take judicial notice of the truth of statements therein.

Plaintiffs' July 9, 2026 RJN is **GRANTED**. (Evid. Code, § 452, subd. (b).)

Plaintiffs' July 9, 2026 Objections to Evidence are **OVERRULED**. These objections go to weight, not admissibility. The objections are also of questionable merit. As to Objection No. 1, which asserts a hearsay objection to Mr. Serrano's statement that "Released Plaintiffs do not currently live in the County of San Mateo," the released plaintiffs themselves have filed declarations stating that they reside in other counties. Indeed, none of them claims to reside in San Mateo County. Further, plaintiffs appear to be objecting to evidence that the former inmate plaintiffs are no longer incarcerated in the County's jails. Yet, at the same time, plaintiffs admit this fact. (See Opp., at p. 26 ["all the incarcerated Plaintiffs have been released."].) In any event, these facts appear to pertain to Code of Civil Procedure, section 526a, which is not a properly asserted claim, as explained below. These objections are accordingly immaterial to the disposition of the Motion. (Code Civ. Proc., § 437c, subd. (q).)

Defendants' July 17, 2026 RJN is **GRANTED**. (Evid. Code, § 452, subd. (d).)

Defendants' July 17, 2026 Objections to Evidence are ruled upon as follows:

- Obj. Nos. 1-11; 13-16. **OVERRULED**. These objections go to weight, not admissibility.
- Obj. No. 12. **SUSTAINED**. An unverified pleading is not evidence.

A. Background

On March 9, 2023, eight plaintiffs filed this lawsuit challenging a procedure adopted in 2021 by which the County stopped delivering non-legal physical mail to persons incarcerated in the County's jails. Instead, using a product called MailGuard™ supplied by Smart